

25VECV03269 25VECV03269

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Case Number: 25VECV03269 Hearing Date: September 1, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

DAVID
CHRISTOPHER SNOW,

Plaintiff,

vs.

POLESTAR
AUTOMOTIVE USA, INC., a Delaware Corporation; GALPIN 2: ELECTRIC B, LLC, a
California Limited Liability Company, d/b/a POLESTAR LOS ANGELES; and DOES 1
through 10, inclusive,

Defendants.

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CASE NO.: 25VECV03269

ORDER

GRANTING IN PART DEFENDANTS' MOTION TO TAX COSTS

I.

BACKGROUND

Plaintiff David

Christopher Snow ("Plaintiff") brings this lemon law action against Defendant Polestar Automotive USA, Inc. ("Polestar"), the vehicle manufacturer, and Galpin 2: Electric B, LLC, d/b/a Polestar Los Angeles ("Galpin") (jointly, "Defendants"), the authorized repair facility.

Defendants move to tax costs.

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II.

PROCEDURAL HISTORY

On June 12, 2025, Plaintiff filed a Complaint alleging (1) Violation Of Song-Beverly Consumer Warranty Act - Breach Of Express Warranty; (2) Violation Of Song-Beverly Consumer Warranty Act - Breach Of Implied Warranty; and (3) Negligent Repair

On July 16, 2025, Defendants separately filed their Answers.

On June 16, 2026, Plaintiff dismissed Galpin.

On July 6, 2026, the Court entered judgment against Polestar consistent with Plaintiff's acceptance of Polestar's Offer to Compromise pursuant to Code of Civil Procedure § 998.[1]

On July 20, 2026, Plaintiff filed a Memorandum of Costs.

On August 6, 2026, Defendants filed the instant Motion to Tax Costs.[2]

On August 19, 2026, Plaintiff filed an Opposition.

On August 25, 2026, Polestar filed a Reply.

III.

LEGAL STANDARD

The Song-Beverly Consumer Warranty Act authorizes recovery of costs “reasonably incurred by the buyer.” (Civ. Code § 1794(d).) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) “On the other hand, if the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs.” (*Id.*)

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Rules of Court, rule 3.1700(a)(1).)

“If items on a memorandum of costs appear to be proper charges on their face, those items are prima facie evidence that the costs, expenses, and services are proper and necessarily incurred. [citations.] The burden then shifts to the objecting party to show them to be unnecessary or unreasonable.” (*Doe v. Los Angeles County Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 693.) “In ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show the costs to be unnecessary or unreasonable.” (*Foothill De Anza Cmty. College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 2930.) “Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court.” (*Ladas v. Cal. State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

“[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. [citation.] However, ‘[i]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations],

and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

IV.

ANALYSIS

1.

Anticipated Fees from Item 1, Item 11, Item
15

Polestar

argues Plaintiff cannot recover anticipated fees on its Memorandum of Costs, as only expenses actually incurred are recoverable. Polestar identifies the following costs: \$60.00 for an “[Anticipated] Motion for Attorney Fees,” \$650.00 for “[Anticipated] Deft Mtn to Tax Costs,” \$650.00 for “[Anticipated] Pltf Mtn for Atty Fees,” \$200.00 for “[Anticipated] Pltf Mtn for Atty Fees (Costs & Expenses),” and \$100.00 for “[Anticipated] Deft Mtn to Strike/Tax Costs (Costs & Expenses). (See Mot. at 3:12-18,4:26-5:5.)

The Court

will grant Polestar’s Motion to Tax costs of \$1,660 comprising the anticipated costs. As Plaintiff acknowledges, he is only entitled to reasonably incurred costs and expenses pursuant to Civil Code § 1794(d). (See Opp. at 4:20.) Plaintiff cannot recover anticipated costs that had not yet been incurred and paid at the time the Memorandum of Costs was filed. Any future costs associated with this Motion or Motion for Attorneys Fees may be sought in the event the fee motion is filed.

The Court

GRANTS Polestar’s Motion to Tax costs of \$1,660 for anticipated costs.

2.

Item 14: Fees for electronic filing or
service

“Fees for the

electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents” are expressly recoverable costs. (Code Civ. Proc. § 1033.5(a)(14).”

Polestar challenges

costs of \$668.20 in fees for electronic filing or service of documents through an electronic filing service provider on grounds they cannot determine whether the \$668.20 reflects recoverable court-imposed filing fees or nonrecoverable electronic filing service-provider charges, such as convenience, processing, vendor, or service fees. (See Mot. at 5:10-13.)

Plaintiff

argues Polestar does not properly object to this cost. (See Opp. at 9:14-18.)

Plaintiffs nonetheless provide an itemization of the \$668.20 cost and receipts.

(See *id.*, at 9:19-11:18; Declaration of Elizabeth Meehan filed August 19, 2026, ¶ 14, Ex. 5.)

Polestar contends

Plaintiff seeks \$74.75 in vendor charges imposed by One Legal and \$385.00 courtesy-copy delivery charges which are not recoverable under § 1033.5(a)(14). (See Reply at 7:25-28, 8:26-27.) Polestar also argues the cost of delivering courtesy copies is a recoverable litigation cost as opposed to an ordinary overhead expense of practicing law.

The Court

DENIES Polestar's Motion to Tax these costs on grounds they are not explicitly recoverable under § 1033.5(a)(14). "[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase 'costs and expenses' to cover items not included in 'the detailed statutory definition of 'costs'' set forth in Code of Civil Procedure section 1033.5." (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App.5th 24, 42, 43 ["it is indisputable that Warren 'reasonably incurred' the \$5,882 cost of the trial transcripts 'in connection with the ... prosecution of [the] action.'"].) Polestar has not shown the costs they challenge were not reasonably incurred in connection with prosecuting this action.

Thus, the

Court DENIES Polestar's Motion to Tax costs from item 14.

V.

CONCLUSION

Based on the

foregoing, the Court GRANTS in part Polestar's Motion to Tax Costs in the amount of \$1,660.00. Plaintiff to recover costs in the amount of \$1,663.20.

IT
IS SO ORDERED.

DATED: September 1, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California authority unless stated otherwise.

[2] Because Galpin was
dismissed, the Court construes Polestar as the only moving party.